

**JUSTICE N. SANTOSH HEGDE NATIONAL MOOT COURT
COMPETITION, 2024**

IN THE HON'BLE SUPREME COURT OF NAHIRA

SPECIAL LEAVE PETITION No. _/ 2024

(UNDER ARTICLE 136 OF THE CONSTITUTION OF NAHIRA)

IN THE MATTER OF

SOTHER BOLAM AND ORS.(APPELLANT)

V.

UNION OF NAHIRA.....(RESPONDENT)

c/w

PUBLIC INTEREST LITIGATION No. _/2024

(UNDER ARTICLE 32 OF THE CONSTITUTION OF NAHIRA)

IN THE MATTER OF

QUANKAR BOLAM.....(PETITIONER)

V.

UNION OF NAHIRA.....(RESPONDENT)

WRITTEN SUBMISSIONS ON BEHALF OF THE PETITIONER AND APPELLANTS

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LIST OF ABBREVIATIONS

&	And
A.I.R.	All India Report
AI	Artificial Intelligence
Art.	Article
CONST.	Constitution
Del	Delhi
DPDPA	Digital Personal Data Protection Act
Hon'ble	Honourable
i.e	That is
Id.	Ibidem
Kar	Karnataka
NADA	National Anti-Doping Authority
NWB	National Wrestling Board
S.C.	Supreme Court
S.C.C.	Supreme Court Cases
S.C.J.	Supreme Court Journal
S.C.R.	Supreme Court Reporters
UOI	Union of India
v.	Versus
WADA	World Anti-Doping Agency

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STATEMENT OF JURISDICTION

The Petitioners have approached the Hon'ble Supreme Court of Nahira under *Article 136* as an appeal and under *Article 32* of the Constitution of Nahira as a Public Interest Litigation.

The Article 136 of the Constitution of Nahira reads as hereunder:

"136. SPECIAL LEAVE TO APPEAL BY THE SUPREME COURT

(1) Notwithstanding Anything In This Chapter, The Supreme Court May, In Its Discretion, Grant Special Leave To Appeal From Any Judgment, Decree, Determination, Sentence Or Order In Any Cause Or Matter Passed Or Made By Any Court Or Tribunal In The Territory Of India.

(2) Nothing In Clause (1) Shall Apply To Any Judgment, Determination, Sentence Or Order Passed Or Made By Any Court Or Tribunal Constituted By Or Under Any Law Relating To The Armed Forces."

The Article 32 of the Constitution of Nahira reads as hereunder:

"32. REMEDIES FOR ENFORCEMENT OF RIGHTS CONFERRED BY THIS PART.

(1) The right to move the Supreme Court by appropriate proceedings for the enforcement of the rights conferred by this Part is guaranteed.

(2) The Supreme Court shall have power to issue directions or orders or writs, including writs in the nature of habeas corpus, mandamus, prohibition, quo warranto and certiorari, whichever may be appropriate, for the enforcement of any of the rights conferred by this Part.

(3) Without prejudice to the powers conferred on the Supreme Court by clauses (1) and (2), Parliament may by law empower any other court to exercise within the local limits of its jurisdiction all or any of the powers exercisable by the Supreme Court under clause (2).

(4) The right guaranteed by this article shall not be suspended except as otherwise provided for by this Constitution."

STATEMENT OF FACTS

I. OVERVIEW OF NAHIRA AND BOLAM COMMUNITY

The state of Nahira is an island country with a population of ten billion. Out of all the ethnic groups Naku community has the highest population (65%), followed by Bolam (15%). The younger generation has migrated for employment mainly for manual labour. They are naturally taller and physically stronger.

II. WRESTLING LEGACY AND MR. QUANKAR BOLAM'S IMPACT

Mr. Quankar Bolam, a renowned Bolam wrestler, triumphs globally, overcoming societal stigmas. Post-retirement in 2005, he dedicated himself to coaching the Bolam community, inspiring many. Despite national team offers, he prioritizes Bolam development, declining other opportunities but remaining open to training in Bolara.

III. DRUG ALLEGATIONS AND PUBLIC STIGMATIZATION

In 2015, three Bolam athletes faced drug-related suspensions, alongside drug peddling allegations against Mr. Quankar. Raids followed, including phone and laptop checks. Charges were dropped by the Narcotics Control Bureau due to insufficient evidence. Mr. Quankar emphasizes development over stigmatization in response to doping allegations. The National Wrestling Board imposed lifetime suspensions for three Bolam athletes, leading to a legal challenge based on the community's traditional practice of 'Batavari Srahmi Ras.'

IV. AI DRUG TESTING COLLABORATION AND RACIAL PROFILING CONCERNS

The NWB, led by President Orry Naku, partners with Catcher Pvt Ltd. to employ AI algorithms for drug testing based on bodily features and functions. raising concerns about racial profiling and disproportionate testing, impacting morale and discouraging career pursuits. Mr. Quankar advocates for Bolam representation in NWB leadership.

V. PUBLIC OUTCRY AND LEGAL CHALLENGES

Alleged racial profiling triggers public outcry, prompting a writ petition against Catcher Pvt. Ltd. and NWB. However, the High Court dismisses the petition, asserting NWB's adherence to its powers and Catcher Pvt Ltd. being an inappropriate authority. Facing lifetime suspensions, Bolam athletes and Mr. Quankar appeal to the Supreme Court, alleging fundamental rights violations. The Hon'ble Supreme Court of Nahira agrees to hear both matters, marking a critical juncture in the ongoing controversy.

STATEMENT OF ISSUES

I.

THE ORDER BY THE HIGH COURT WAS BAD IN LAW.

II.

THE FUNDAMENTAL RIGHTS OF THE ATHLETES HAVE BEEN VIOLATED.

SUMMARY OF ARGUMENTS

ISSUE I

THE ORDER BY THE HIGH COURT WAS BAD IN LAW.

1. The Petitioners submits that the appeals before the Hon'ble Supreme Court of Nahira are maintainable under *Article 136* of the Constitution. Under *Article 136*, the Petitioners argues that special leave to appeal has been granted, indicating completion of the first step, and the appeal now requires consideration on its merits. The dismissal of the petition by the High Court of Zahura is deemed arbitrary, resulting in a miscarriage of justice. Moreover, the case involves substantial questions of law, particularly regarding the violation of fundamental rights, justifying the Supreme Court's intervention.
2. The Petitioners contends that the High Court's order was legally flawed for several reasons. Firstly, Catcher Pvt. Ltd. falls within the jurisdiction of *Article 226*, making it the appropriate authority to address violations of fundamental rights. Legal precedents and interpretations of *Article 226* support this argument, emphasizing that the term "authority" is not limited to statutory bodies but includes private entities involved in public functions. Secondly, the National Wrestling Board (NWB) exceeded its powers by collecting samples and data without proper authorization from the National Anti-Doping Agency (NADA). This contravenes anti-doping rules and regulations, demonstrating a clear overreach of NWB's authority and a violation of procedural guidelines.
3. Moreover, NWB's actions perpetuate discrimination and violate principles of equality by using an AI system that unfairly targets athletes based on facial features and bodily functions. Such discriminatory measures lack a rational nexus of deterring drug abuse and fail the twin test and proportionality test required for legal classification. Additionally, NWB's actions violate *Article 15* of the constitution, which protects against discrimination by the state. By segregating athletes based on physical characteristics associated with certain communities, NWB indirectly discriminates against those communities, perpetuating stereotypes and unjustly targeting individuals based on ethnicity and place of birth.
4. The effect of NWB's actions infringes upon the rights of athletes by subjecting them to unfair treatment and stigma based on their physical characteristics. This discriminatory system not only violates fundamental rights but also discourages athletes from marginalized communities from participating in sports.

ISSUE II.

THE FUNDAMENTAL RIGHTS OF THE ATHLETES HAVE BEEN VIOLATED.

1. The Petitioners submits that the Public Interest Litigation before the Hon'ble Supreme Court of Nahira is maintainable under Article 32 of the Constitution. The Public Interest Litigation filed under Article 32 addresses gross violations of fundamental rights affecting the Bolam Community. The Petitioners contends that rights to equality, non-discrimination, livelihood, and personal liberty have been infringed upon, warranting the PIL.
2. The Petitioners submits that the fundamental rights of athletes have been violated, asserting that the National Wrestling Board of India (NWB) qualifies as a 'State' entity under Article 12 of the Constitution due to its close ties with the government. The NWB's involvement in international forums and regulatory functions aligns with constitutional mandates, extending the applicability of fundamental rights to its actions. Regarding the lifetime suspension of athletes, the Petitioners argues that due process, as mandated by Article 21, has been breached. The National Anti-Doping Agency (NADA) failed to meet the standard of proof required, and the imposed penalty exceeds the statutory maximum, highlighting procedural flaws and a lack of fairness in decision-making.
3. Additionally, the sharing of athletes' data violates their right to privacy, as established by the Constitution and the Digital Personal Data Protection Act. The submission of data without consent disregards privacy guidelines, infringing upon athletes' autonomy over their personal information. The targeting of Bolam community athletes by an AI system raises concerns of discrimination and violates principles of equality under Article 14. The arbitrary categorization based on physical features unfairly discriminates against the community, undermining their rights and perpetuating societal divides. Furthermore, the lifetime suspension infringes upon the athletes' right to livelihood under Article 19(1)(g), as the punishment effectively halts their sports career. The disproportionate penalty and lack of procedural fairness render the decision invalid.
4. Lastly, the increased scrutiny on the traditional Batavari ras medicine consumed by Bolam athletes infringes upon their cultural rights protected under Article 29. The medicine, integral to their culture and health practices, faces unjustified scrutiny, undermining their distinct cultural identity and right to preserve their heritage.

ARGUMENTS ADVANCED

ISSUE 1

THE ORDER BY THE HIGH COURT WAS BAD IN LAW.

1.1. THE APPEAL FILED BEFORE THIS HON'BLE SUPREME COURT UNDER ARTICLE 136 IS MAINTAINABLE.

1. It is humbly and most respectfully submitted that this appeal to the writ petition, which was dismissed by the High Court of Zahura, is maintainable as stated in the judgement of ***My Palace Mutually Aided Cooperative Society Vs. B. Mahesh & Ors.*** that an appeal can be made with the leave of the court by a person affected by the judgement.¹
2. *Article 136* of the Constitution of Nahira empowers this Hon'ble Supreme Court of Nahira to grant special leave to appeal from any kind of judgment, decree, or order in any cause or matter passed or made by any court or tribunal in the territory of India.² *Article 136* of the Constitution of Nahira involves two steps, viz, (i) *to grant a special leave to appeal*, and (ii) *hearing the appeal*. The first step continues up to the disposal of prayer for special leave to file for an appeal.³ In the present case, it has been clearly stated that the Supreme Court has agreed to hear the matter which implies that the first step has been completed and only the second stage which is for the appeal to be heard on merits.⁴
3. *In arguendo*, this Hon'ble Court has stated that Special Leave Petition being a special power, is to be exercised only in those cases where special circumstances are shown to exist, and whenever there is an injustice done to a party in a proceeding before a court or there is a miscarriage of justice, or when a question of law of general public importance arises, or a decision shocks the conscience of the Court, this jurisdiction can always be invoked.⁵ If the order has been passed based on a misunderstanding of the principle that governs its exercise, then the Supreme Court would intervene if there has been a resultant failure of justice.⁶ It is

¹ *My Palace Mutually Aided Cooperative Society Vs. B. Mahesh & Ors.*, (2022) SCC OnLine SC 1063.

² INDIA CONST. Art. 136.

³ MP JAIN, INDIAN CONSTITUTIONAL LAW, 237 (Lexis Nexis 8th edition, 2018).

⁴ Moot Proposition, page 4.

⁵ *Dhakeswari Cotton Mills Limited v CIT*, AIR 1989 SC 1298: (1989) 2 SCC 303.

⁶ *Ajit Singh v State of Punjab*, AIR 1967 SC 856: 1967 (2) SCR 143.

submitted that the order passed by the Hon'ble High Court of Zahura was arbitrary, injustice was done to the parties and resulted in the failure of justice.

4. It is respectfully submitted that the present case involves a substantial question of law. As observed in **Chunilal Mehta**⁷, "The proper test for determining whether a question of law raised in the case is substantial would, in our opinion, *be whether it is of general public importance or whether it directly and substantially affects the rights of the parties* and if so whether it is either an open question in the sense that it is not finally settled by this Court or by the Privy Council or by the Federal Court or is not free from difficulty or calls for discussion of alternative views".
5. The Petitioners are victims of injustice. Fundamental Rights to Equality under *Article 14*⁸ and non-discrimination under *Article 15*⁹ of the Constitution of Nahira have been violated. Justice was denied when the Hon'ble High Court of Zahura arbitrarily dismissed the petition. The Jurisdiction conferred under *Article 136*¹⁰ is corrective and not restrictive.¹¹ In the present case, the rights of the members of the Bolam Community who are suffering from injustice and the unreasonable, arbitrary decision of the High Court of Zahura as well as the ambiguity in the law, are in question. Therefore, it is prayed before this Hon'ble Supreme Court of Nahira that the Petitioners have Locus Standi and that the case is maintainable.

1.2. CATCHER PVT. LTD WAS THE RIGHT AUTHORITY UNDER ARTICLE 226.

6. It is humbly and most respectfully submitted that the writ petition before the High Court was dismissed, stating that Catcher Pvt. Ltd. is not the right authority. The High Court, as per *Article 226*,¹² has the power to issue directions, orders or writs to any (i) person, (ii) authority and (iii) government. The Supreme Court in **Kaushal Kishore**¹³ has stated that the scope of authority extends to 'private entities' and can be included under the ambit of *Article 226*.
7. This Hon'ble court has held that the jurisdiction of the Court in terms of violation of fundamental rights under *Articles 226 and 32*¹⁴ are different.¹⁵ The term "authority" used in

⁷ Sir Chunilal V. Mehta & Sons Ltd. v. Century Spg. & Mfg. Co. Ltd AIR 1962 SC 1314.

⁸ INDIA CONST. Art. 14.

⁹ INDIA CONST. Art. 15.

¹⁰ INDIA CONST. Art. 136.

¹¹ Haryana State Industrial Corporation. v. Cork Mfg. Co., (2007) 8 SCC 120.

¹² INDIA CONST. Art. 226.

¹³ Kaushal Kishor v. State of U.P., (2023) 4 SCC 1.

¹⁴ INDIA CONST. Art. 32.

¹⁵ MP JAIN, INDIAN CONSTITUTIONAL LAW (Lexis Nexis 8th edition, 2018).

Article 226, in the context, envisions a liberal meaning, unlike the term in *Article 12*.¹⁶ The words “any person or authority” used in *Article 226* are, therefore, not confined only to statutory authorities and instrumentalities of the State.¹⁷ They may cover any other person or body performing public duty. The Court reiterated this in *Janet Jeyapaul*.¹⁸

8. Furthermore, it is submitted that Catcher Pvt. Ltd. is involved in ‘public function’ by being in collaboration with NWB. The NWB is responsible for recruiting wrestlers for the National Teams and, in general, all the functionalities and activities relating to wrestling in the country. The National Sports Code explicitly states that it performs state-like functions such as selecting national teams and representing the country in international sports events and forums.¹⁹ This Court in *St. Mary's Education Society* held that a private body discharging a public function and denial of any right is in connection with such public function, despite the duty being statutorily conferred or otherwise would be amenable under *Article 226*.²⁰
9. Therefore, it is humbly submitted that Catcher Pvt. Ltd. falls under the jurisdiction of *Article 226* and was the ‘right authority’ to enforce fundamental rights against.

1.3. THE NATIONAL WRESTLING BOARD TRANSGRESSED ITS POWERS.

10. It is humbly submitted that the NADA Anti-Doping Rules prescribe the subordination of National Federations to the authority of NADA.²¹ The scope of their authority is limited to cooperating with NADA in the performance of its functions mentioned under the Rules.²² Under these Rules, NADA is the authority which has been empowered to collect samples²³ for testing following the International Standard for Testing and Investigations.²⁴ *Article 18.5* of the Rules explicitly provides that

“All National Federations of India shall conduct Testing only under the documented authority of their International Federation and using NADA or other Sample collection

¹⁶ INDIA CONST. Art. 12.

¹⁷ *Andi Mukta Sadguru Shree Muktajee Vandas Swami Suvarna Jayanti Mahotsav Smarak Trust v. V.R. Rudani*, (1989) 2 SCC 691.

¹⁸ *Janet Jeyapaul v. SRM University*, (2015) 16 SCC 530.

¹⁹ National Sports Code 2011, Statement of Purpose 1.2.

²⁰ *St. Mary's Education Society v. Rajendra Prasad Bhargava*, (2023) 4 SCC 498.

²¹ NADA Anti-Doping Rules, 2015, Article 18.1.

²² NADA Anti-Doping Rules, 2015, Article 18.2.

²³ NADA Anti-Doping Rules, 2015, Article 5.2.

²⁴ WADA Code International Standard Testing and Investigations, 2023 (Jan. 18, 12:55pm), https://www.wada-ama.org/sites/default/files/2022-12/isti_2023_w_annex_k_final_clean.pdf.

authority to collect samples in compliance with the International Standard for Testing and Investigations;

analysing all Samples collected using a WADA-accredited or WADA-approved laboratory.”²⁵

11. Furthermore, it is submitted that the samples, related analytical data, and doping control information may be used for anti-doping research by NADA, provided the athletes' written consent.²⁶ NADA further has to send the samples to WADA-accredited or WADA-approved laboratories for analysis, following which the data generated can be used for research purposes.²⁷ The data collected by NADA may be shared with any third-party agents subject to appropriate technical and contractual controls to protect the confidentiality and privacy of such information.²⁸
12. Therefore, NWB, the National Federation for Wrestling in Nahira, is not empowered and is explicitly restricted in its powers to independently collect samples or data and share the same with third-party agents unless the same has permission from the NADA. NWB is not authorised to collect samples or conduct *Testing* at Event Venues without proper delegation as it is a power solely enshrined upon NADA.²⁹ This is a substantial over-reach and non-compliance with the Code and the Anti-Doping Rules. Furthermore, NADA is required to exercise contractual controls to protect the confidentiality and privacy of information shared with delegated third parties.³⁰ In the absence of such contractual relations with NWB, as is evident from the facts, NWB is acting ultra vires its powers.
13. *In arguendo*, even if the NWB is considered competent to use the athletes' data, this has to be done in a just, fair and reasonable manner. If the action of NWB is arbitrary and perverse or contrary to settled principles and practices, it shall be subject to judicial review. This court in *Sushil Kumar*,³¹ while upholding the autonomous functioning of the National Sports Federations, had provided that a Writ Court can interfere in the exercise of discretion of the

²⁵ NADA Anti-Doping Rules, 2015, Article 18.5.

²⁶ NADA Anti-Doping Rules, 2015, Article 6.3.

²⁷ NADA Anti-Doping Rules, 2015, Article 6.4.

²⁸ NADA Anti-Doping Rules, 2015, Article 14.6.2.

²⁹ NADA Anti-Doping Rules, 2015, Article 5.3.

³⁰ NADA Anti-Doping Rules, 2015, Article 14.

³¹ *Sushil Kumar v. Union of India*, 2016 SCC OnLine Del 3660.

National Sports Federations where the discretion is shown to have been exercised in an arbitrary, capricious, or perverse manner or contrary to settled principles or practices.

14. An authority exercising powers under the legislation has to act in accordance with and within the limits of the legislation; its order can be challenged if it is beyond those limits. In *Barium Chemicals Ltd.*,³² it was stated that ‘*it is settled in law that if a statute prescribes to do a thing in a particular manner, it has to be done in the same manner or not at all.*’ NWB, even if it were acting in the exercise of its delegated authority, is in clear violation of the Rules prescribed. The authority has significantly overstepped its bounds in violating the procedure for the appropriation of data.

1.4. THE NATIONAL WRESTLING BOARD HAS VIOLATED THE PRINCIPLES OF EQUALITY.

15. It is humbly submitted that the AI system was designed to analyse complex patterns and identify potential signs of drug abuse based on facial features and bodily functions. The AI algorithm requires a multitude of data and samples to work with and give a result.³³ The data, which comprises ‘facial features and bodily functions’, were provided to Catcher Pvt. Ltd. Primarily by NWB and collected through behavioural examinations of the athletes during their performances. The ‘samples’ which were imperative for the conclusive determination of the use of prohibited substances were conveniently ignored.
16. It is submitted that the AI employed for the ‘efficient’ detection of potential signs of drug abuse has been modelled based on ‘data’ about the individual’s facial features and bodily behaviour during performances. The ‘behavioural examinations’ are not only illegally done but are also inadequate. This system was built on mere naked-eye observations and not substantive conclusive laboratory results. The ‘signs of drug abuse’ in this case are mere physical features that were concluded to be indicative of the use of prohibited substances without corroboration. Therefore, the arbitrary determination of certain facial features and bodily behaviour as ‘parameters’ results in prejudice to communities that genetically exhibit such aspects.
17. Therefore, the arbitrary and discriminatory act of NWB reflects its digression from the transformative ideal of the constitution, which recognises and endorses hope for a better future

³² *Barium Chemicals Ltd. v. Company Law Board*, 1966 SCC OnLine SC 53.

³³ Moot Proposition, page 3.

for marginalised communities and individuals who have had their destinies crushed by a feudal and caste-based social order.³⁴

1.4.1. THE MEASURES TAKEN BY THE NATIONAL WRESTLING BOARD DO NOT PASS THE TWIN TEST.

18. It is humbly and respectfully submitted that as laid down in *Anwar Ali Sarkar*,³⁵ the Twin Test remains a pre-requisite for any classification the State makes.³⁶ According to the test: (i) there must be an intelligible differentia, (ii) the object must be constitutional, and (iii) there should be a rational nexus with the object. NWB has classified the athletes based on the variance in facial features and bodily functions, which are mere physical features. The object behind such state action was to detect and deter drug abuse among athletes. Facial features and bodily functions, which reflect a plethora of aspects, including genetics, geography, diet and so on, are not indicative of alien substances in one's body. Hence, an AI which classifies people based on such features has no rational nexus with the objective of detecting or deterring drug abuse.

19. Furthermore, the Apex Court in *Navtej Singh Johar*,³⁷ while highlighting the inadequacies of the twin test, had stated that the over-emphasis on 'objective' should not curtail the true extent of the protection guaranteed under *Article 14*. If the 'effect' of the state action is discriminative and violates the principles of equality, then the same is a denial of the protection so guaranteed. Furthermore, it was stated that the claims made by the State as to the reason for such classification cannot be accepted without putting it to the test of reason through the submission of cogent material.³⁸ No cogent data was relied on to correlate the particular set of facial features and bodily functions, which in any other instance would be considered normal, to the presence of drugs in the system.

1.4.2. THE MEASURES TAKEN BY THE NATIONAL WRESTLING BOARD ARE IN VIOLATION OF THE PROPORTIONALITY TEST.

20. It is humbly submitted that Equality under *Article 14* pre-supposes Rationality.³⁹ The Apex Court in *E.P. Royappa* extended protection under *Article 14* to non-classificatory arbitrariness.⁴⁰ *Article 14* strikes at arbitrariness in State action and ensures fairness and

³⁴ Indian Young Lawyers Assn. (Sabarimala Temple-5J.) v. State of Kerala, (2019) 11 SCC 1.

³⁵ State of West Bengal v. Anwar Ali Sarkar, AIR 1952 SC 75.

³⁶ MP JAIN, INDIAN CONSTITUTIONAL LAW (Lexis Nexis 8th edition, 2018).

³⁷ Navtej Singh Johar v. Union of India, (2018) 10 SCC 1.

³⁸ State of T.N. v. National South Indian River Interlinking Agriculturist Assn., (2021) 15 SCC 534.

³⁹ MP JAIN, INDIAN CONSTITUTIONAL LAW (Lexis Nexis 8th edition, 2018).

⁴⁰ E.P. Royappa V State of Tamil Nadu, AIR 1974 SC 555.

equality of treatment.⁴¹ When the operative reason for the State Action is not legitimate and relevant but is extraneous and outside the permissible considerations, it would amount to a mala fide exercise of power and is hit by *Article 14*. NWB has arbitrarily exercised its power by illegitimately transferring data without the consent of the athletes and has employed a system which functions on the basis non-corroborated irrelevant data.

21. It is pleaded that for a state action to be qualified as non-arbitrary, the same should qualify the test of proportionality as laid down in ***Modern Dental College***⁴² and referred to in the **Puttaswamy**. To satisfy the test of proportionality, (i) the state action must have a legitimate aim, (ii) the measure must be suitable for achieving the aim, (iii) it should be the least restrictive alternative, (iv) there must be a balance between the extent of restriction and the importance of the goal (proportionality *stricto sensu*).⁴³
22. NWB, while employing such an AI, aims to detect and deter the use of performance-enhancing drugs. The measure they have introduced, i.e., using an AI for ‘detecting’ based on an athlete’s bodily functioning and facial features, does not, prima facie, indicate the presence of any drug in use. Hence, the same cannot be said to be a ‘suitable’ measure as required under the test. This measure has been employed instead of other more efficient and less discriminative measures, laying the red carpet for arbitrariness. The importance of eliminating performance-enhancing drugs cannot be justified to the extent of a biased system created using data which is prejudicial against a particular sect of the community, resulting in their constant targeting and diminished morale. Employing such a supposed ‘anti-doping’ measure fails the test of proportionality and hence is arbitrary, contravening *Article 14*.

1.4.3. THE NATIONAL WRESTLING BOARD HAS VIOLATED THE PRINCIPLES OF ARTICLE 15.

23. It is humbly submitted that *Article 15* of the constitution guarantees protection from discrimination by the State. The ***Naz Foundation Case***⁴⁴ has expanded the scope of *Article 15* to protect grounds analogous to those mentioned. The Cambridge dictionary has defined ‘ethnicity’ to mean ‘in relation to race’,⁴⁵ thereby bringing it under the ambit of Art 15.

⁴¹ Ibid.

⁴² *Modern Dental College and Research Centre v. State of M.P.*, 2013 SCC OnLine MP 1132.

⁴³ *K.S. Puttaswamy and Anr. vs. Union of India*, ((2017) 10 SCC 1.

⁴⁴ *Naz Foundation v. State (NCT of Delhi)*, 2009 SCC OnLine Del 1762.

⁴⁵ CAMBRIDGE DICTIONARY, *Ethnic*, (2024), <https://dictionary.cambridge.org/dictionary/english/ethnic> (last visited Jan. 6, 2024).

Furthermore, 80% of the Bolam community resides in Bolara, bringing about the ground of ‘place of birth’ as enumerated under *Article 15*.

24. Furthermore, in *Navtej Singh Johar*,⁴⁶ the Court has reiterated the need to unemploy a formalistic understanding of the wording of *Article 15* and that any ground which stereotypes a particular class of persons would not be a ground distinctive from the original ground. The Anti-stereotyping principle, in essence, seeks to protect classes from being discriminated against by classification based on stereotypes associated with them. A discrimination will not survive constitutional scrutiny when it is grounded in and perpetuates stereotypes about a class constituted by the grounds prohibited in *Article 15(1)*.⁴⁷
25. The current classification by the State using an AI that segregates people based on facial features and bodily functions is rooted in communal stereotypes. This perpetuates the idea that people of a certain community having distinctive features are indicative of a particular way of life solely on the reasoning that they belong to that community. The State has leveraged the statistics by an unknown report,⁴⁸ which has stigmatised an entire community as criminals and made the physical features of that community the basis of segregation. This amounts to indirect discrimination against the Bolam community as they are targeted indirectly based on their physical features.

1.5. THE EFFECT OF NATIONAL WRESTLING BOARD’S ACTION IN INFRINGEMENT OF WRESTLER’S RIGHTS

26. The Supreme Court in *Navtej Singh Johar*,⁴⁹ has emphasised the principle that was laid down in *Indian Express Newspaper*,⁵⁰ that if imposition of state action has the effect of crippling the guaranteed rights of individual citizens, then the objective of the State for initiating such action would weigh less. It is not the object of the law which impairs the rights of the citizens. Nor is the form of the action taken determinative of the protection that can be claimed. It is the effect of the law upon the fundamental right which calls the courts to step in and remedy the violation.⁵¹

⁴⁶ *Navtej Singh Johar v. Union of India*, (2018) 10 SCC 1.

⁴⁷ *Ibid*.

⁴⁸ Moot Proposition, page 3.

⁴⁹ *Navtej Singh Johar v. Union of India*, (2018) 10 SCC 1.

⁵⁰ *Indian Express Newspapers (Bombay) Pvt. Ltd. v. Union of India*, 2002 SCC OnLine Bom 785.

⁵¹ *Navtej Singh Johar v. Union of India*, (2018) 10 SCC 1.

27. The state has, under the guise of deterring the use of performance-enhancing drugs, brought about a system which effectively discriminates the members of a particular community owing to their distinctive physical characteristics. The employment of such a system violates the rights of members by identifying them based on facial features and bodily functions, which are categorically associated with their community and, therefore, the stigma associated with the same. The extraneous effect of it is reflected in the deterioration of the morale of Bolam athletes and their discouragement from pursuing the sport.
28. In *arguendo*, even if the Respondent contends that the design or data is not biased, adhering to the *Puttaswamy* case standard,⁵² it is imperative to recognize that projects serving a larger public benefit may necessitate the subordination of individual or smaller public interests. However, in such instances, meticulous care, caution, and vigilant monitoring at every stage become imperative. The maintenance of safety should be an ongoing commitment, not merely at the design phase but also throughout project operation. It is contended that in the present case, as per the court's established standard, the Respondents are duty-bound to ensure that the AI's operation does not infringe upon the rights of any individual. Evidently, the Respondents failed to exercise such precautions, highlighting a critical oversight in their approach. NWB's Actions are in Contradiction to the Wada International Standard for Testing And Investigations.
29. It is humbly submitted that WADA International Standards for Testing and Investigation⁵³ have explicitly laid down the categories of athletes who can be target-tested by National Anti-Doping Organizations.⁵⁴ The features or functions in question that are the basis of classification do not fit into the same. The provisions provide for categorisation based on the hierarchy of events in which the athletes participate and not innate characteristics of the athletes, as this leads to prejudice. Furthermore, *Article 4.5.3* lists the additional criteria to be considered, which fails to justify the system.
30. WADA requires that if the criteria for target testing are not met, then random selection shall be the basis of selection for testing.⁵⁵ Random Selection shall be conducted using a documented system for such selection. It is submitted that in the present case, the AI is not randomly selecting the athletes but targeting them on disallowed grounds. This violates the WADA

⁵² K.S. Puttaswamy and Anr. vs. Union of India, (2017) 10 SCC 1.

⁵³ WADA Code International Standard Testing and Investigations, 2023, https://www.wada-ama.org/sites/default/files/2022-12/isti_2023_w_annex_k_final_clean.pdf.

⁵⁴ NADA Anti-Doping Rules, 2015, Article 4.5.2 & 4.5.3.

⁵⁵ NADA Anti-Doping Rules, 2015, Article 4.5.4.

International Standards and is hence impermissible. Furthermore, even if the weighted random selection were applied, the same must be on the grounds already discussed.

31. Therefore, the AI is employed to select the athletes on the basis of grounds which are extraneous to that laid down by WADA.

ISSUE 2

THE FUNDAMENTAL RIGHTS OF THE ATHLETES HAVE BEEN VIOLATED.

***2.1. THE PUBLIC INTEREST LITIGATION FILED BEFORE THIS HON'BLE SUPREME COURT
UNDER ARTICLE 32 IS MAINTAINABLE***

32. A Public Interest Litigation under *Article 32*⁵⁶ of the Constitution of Nahira is filed when there is a gross violation of the fundamental rights of a group or a class of people.⁵⁷ PIL can be filed by any member of the public having a bona fide and sufficient public interest under *Article 32* of the Constitution of Nahira.⁵⁸ This has been laid down in *S.P Gupta*,⁵⁹ wherein PIL can be filed by any member of the public or social action group acting bona fide seeking redressal against violation of legal or constitutional rights of persons unable to approach the Court due to social, economic, or other disabilities.

33. In the present case, the Right to Equality(*Article 14*)⁶⁰, the right against Discrimination (*Article 16(2)*),⁶¹ the right to practise any profession, or to carry on any occupation, trade or business (*Article 19(1)(g)*)⁶², right to life and personal liberty (*Article 21*)⁶³ and right to protect interests of minorities (*Article 29(1)*) of the Bolam Community have been violated by the actions of National Wrestling Board and Catcher Pvt Ltd. Therefore, The Public Interest Litigation filed by Mr. Quankar Bolam before this Hon'ble Supreme Court is maintainable.

2.2. THE QUESTION OF ENFORCEABILITY.

34. It is humbly and most respectfully submitted that the National Wrestling Board of India (NWB) unequivocally qualifies as 'other authority' as per the definition of 'State' under *Article 12*⁶⁴ of the Constitution. The government's explicit endorsement and support for NWB's representation in international wrestling forums demonstrate a level of control and involvement, meeting the criteria for the 'State' classification.

⁵⁶ INDIA CONST. Art. 32.

⁵⁷ Arvind P. Datar, *Commentary on the Constitution of India* 542 (2nd ed. 2007).

⁵⁸ *Ashok Kumar Pandey v. State of West Bengal*, (2004) 3 SCC 349 (India); *Nepal Sarkar v. State of West Bengal*, 1993 SCC OnLine Cal 84 (India); *R. Lakshmi v. S. Ramalingam*, 1998 SCC OnLine Mad 427 (India).

⁵⁹ *S.P. Gupta v. Union of India*, 1983 SCC OnLine Del 395.

⁶⁰ INDIA CONST. Art. 14.

⁶¹ INDIA CONST. Art. 16 cl. 2.

⁶² INDIA CONST. Art. 19 cl. 1(g).

⁶³ INDIA CONST. Art. 21.

⁶⁴ INDIA CONST. Art. 12.

35. It is submitted that NWB's role transcends mere sports organisation, encompassing public duties and regulatory functions⁶⁵. The Delhi High Court's observations underscore the imperative need for government recognition, highlighting the constitutional mandates of *Entry 10 and 13 of Union List*,⁶⁶ which exclusively reserved matters of foreign affairs and participation in international events for the Union Government.⁶⁷
36. NWB's adherence to government recognition is crucial to safeguard national interests and comply with diplomatic protocols, addressing diplomatic considerations and security concerns. Furthermore, NWB's involvement in executing public functions and regulatory activities in wrestling goes beyond the realm of a sports organisation, embracing responsibilities of public interest and regulatory oversight. This multifaceted role solidifies NWB's classification as a 'State' within the purview of *Article 12*.
37. Furthermore, the Board has always been subjected to de-facto control of the Ministry of Youth Affairs and Sports.⁶⁸ It is submitted that the Government of India has granted de-facto recognition to the Board and continues to so recognise the Board as the Apex National Body for regulating the sport of Wrestling in India. It is because of such recognition granted by the Government of India that the team selected by the Board can represent itself as the Indian wrestling team and if there had not been such recognition the team could not have represented the country as the same in the international events. It is submitted that the Board has to seek prior permission and approval from the Government of India whenever it has to travel outside the country to represent the country.
38. Hence, NWB can be held liable for the violation of the fundamental rights as enshrined in the Constitution of India.

2.3. THE LIFETIME SUSPENSION OF THE ATHLETES VIOLATES THE DUE PROCESS AS MANDATED BY THE CONSTITUTION.

2.3.1. THERE IS NO VIOLATION BY THE ATHLETES.

39. It is humbly submitted that the precedent set forth in *Maneka Gandhi*⁶⁹ underscores the imperative that any procedure contemplated by *Article 21*⁷⁰ of the Constitution of India must

⁶⁵ Zee Telefilms Ltd. v. Union of India, (2005) 4 SCC 649.

⁶⁶ INDIA CONST. Sch VII.

⁶⁷ Narinder Batra v. Union of India, 2009 SCC OnLine Del 480.

⁶⁸ National Sports Code 2011, Article 3.6.

⁶⁹ Maneka Gandhi v. Union of India, AIR 1978 SC 597.

⁷⁰ INDIA CONST. Art. 21.

withstand the scrutiny of reasonableness. For a procedure to be deemed just, fair, and reasonable, and in compliance with *Article 21*, it is essential that it must not be arbitrary, fanciful, or oppressive. Any deviation from the standard of reasonableness renders the procedure inadequate and fails to meet the constitutional mandate of *Article 21*.

40. It is submitted that the NADA was duly established by the Government of India, and subsequently, the Anti-Doping Rules were adopted in collaboration with the World Anti-Doping Agency (WADA). These rules constitute a comprehensive framework that athletes are obligated to adhere to. Notably, *Article 2* of the National Anti-Doping Rules⁷¹ expressly lays down that doping involves the contravention of one or more anti-doping rules delineated in *Articles 2.1* through *2.10*. Therefore, athletes are bound by the stipulations set forth in these rules, and any violation thereof constitutes an infringement under the purview of the anti-doping regulations established by NADA in concordance with international standards delineated by WADA.
41. Primarily, this Hon'ble court is urged to note that the alleged transgression by the NWB pertains to *Article 2.1*, which sanctions the presence of a prohibited substance or its metabolites or markers in an athlete's sample.⁷² Pertinently, *Article 4* of the rules outlines the *Prohibited List*.⁷³ It is hereby submitted before this Hon'ble court that the referenced prohibited list is none other than the World Anti-Doping Agency (WADA) Prohibited List.
42. It is imperative to underscore that within the entirety of the prohibited list, substances classified as Actoprotectors, inclusive of but not limited to Bemetil, Thiazoloindole derivatives, Succinic acid, and 3-hydroxyproline derivatives such as Mexidol,⁷⁴ are conspicuously absent. Therefore, the argument posited that athletes stand in violation of the stipulated rules lacks substantive merit. The absence of the specified substances from the WADA Prohibited List substantiates the contention that the athletes in question have not breached the prohibitions articulated therein.

⁷¹ NADA Anti-Doping Rules, 2015, Article 2.

⁷² NADA Anti-Doping Rules, 2015, Article 2.

⁷³ NADA Anti-Doping Rules, 2015, Article 4.

⁷⁴ Ibid.

2.3.2. THE MANDATED STANDARD OF PROOF IS NOT ESTABLISHED.

43. Furthermore, attention is drawn to *Article 3* of the rules, which elucidates the criteria for establishing *Proof of Doping*.⁷⁵ Explicitly, it delineates that the burden of proof rests with the National Anti-Doping Agency (NADA), necessitating the agency to substantiate an anti-doping rule violation. Noteworthy is the unequivocal stipulation that the standard of proof required transcends the threshold of a mere Preponderance of probabilities.⁷⁶
44. It is respectfully submitted that the agency, in the present matter, has faltered in adhering to the prescribed standard of proof as articulated in the applicable code. Contrary to the procedural mandate, the Board has failed to furnish any form of substantiation before reaching its decision. In glaring contrast, the decision appears to be predicated solely on an unsubstantiated accusation devoid of merit. It is imperative to underscore that no evidentiary support has been proffered by the Board in the course of its decision-making process. Furthermore, it is brought to the court's attention that drug testing, a pivotal element in such matters, was conducted subsequent to the imposition of a lifetime ban on the athletes,⁷⁷ raising serious concerns regarding procedural fairness and the integrity of the decision-making process.

2.3.3. TRANSGRESSED THE STATUTORY MAXIMUM PENALTY.

45. In *arguendo*, one were to assume the culpability of the athletes, a premise yet to be substantiated or adequately investigated, the prescribed period of ineligibility is explicitly delineated in *Article 10* of the rules.⁷⁸ This statutorily mandates penalties for proven transgressions. Notably, it unambiguously stipulates a suspension period ranging from *two* to *four* years as the statutory maximum.⁷⁹

2.3.4. WHY THE COURT SHOULD INTERVENE

46. It is submitted that this Court has recently reaffirmed that the purpose of judicial review focuses on ensuring the legitimacy of the decision-making process and verifying the presence of evidence to support the findings.⁸⁰ Furthermore, the principles of natural justice are required to be observed to ensure that justice is done and manifestly seen to be done. The object of the principles of natural justice is to ensure that a government servant is treated fairly in

⁷⁵ NADA Anti-Doping Rules, 2015, Article 3.

⁷⁶ *Ibid.*

⁷⁷ Moot Proposition, page 3.

⁷⁸ NADA Anti-Doping Rules, 2015, Article 19.

⁷⁹ NADA Anti-Doping Rules, 2015, Article 10.2.2.

⁸⁰ *State Bank of India v. A.G.D. Reddy*, 2023 SCC OnLine SC 1064.

proceedings, which may culminate in the imposition of punishment, including dismissal/removal from service.⁸¹

47. In a very similar case involving the employees of the ***State Bank of India***, the SC held that since their services were terminated on the grounds of their misconduct as to use of unfair means and the fact that no enquiry was conducted and no opportunity of hearing were granted to them. They were condemned unheard despite stigmatic allegations as above, the termination of their services was declared unsustainable, bad in law and reinstated.⁸²

48. Therefore, it is prayed by the Petitioners that the deficiencies in the proceedings, including the absence of a judicious and impartial hearing, the failure of the board to meet the prescribed standard of proof mandated by the governing rules, the conspicuous absence of substantiated evidence against the athletes, and the apparent non-compliance with statutory guidelines guiding the board's decision-making process collectively establish the non-adherence to due process of law. This decision of the board, being absent of procedural fairness and sound legal foundation, is implored to be set aside on the grounds of violating the sacrosanct provisions enshrined in *Article 21* of the Constitution.

2.4. THE NATIONAL WRESTLING BOARD, BY SHARING THE DATA OF THE ATHLETES, VIOLATED THEIR RIGHT TO PRIVACY.

49. It is respectfully submitted that this Hon'ble court, in its seminal pronouncement in ***K.S. Puttaswamy***,⁸³ established the right to privacy as an inherent and integral component of *Article 21* of the Constitution of India.

50. The Digital Personal Data Protection Act, 2023 (DPDPA) unequivocally articulates the parameters governing the consent of a Data Principal. Pursuant to its provisions, the consent bestowed by the Data Principal must meet specific criteria. It shall be free, specific, informed, with clear affirmative action, and shall signify an agreement to the processing of her personal data for the specified purpose and be limited to such personal data as is necessary for such specified purpose.⁸⁴

⁸¹ State of UP & Others Vs. Saroj Kumar Sinha, AIR 2010 SC 3131.

⁸² State Bank of India Vs. Palak Modi, (2013) 3 SCC 607.

⁸³ K.S. Puttaswamy and Anr. vs. Union of India (2017) 10 SCC 1.

⁸⁴ Digital Personal Data Protection Act, 2023, § 6.3.

51. Such a requirement underscores the importance of ensuring that the Data Principal's consent is obtained transparently, without coercion, and with a comprehensive understanding of the intended use of their personal data. This legislative framework aligns with the constitutional recognition of the right to privacy, as delineated in the K.S. Puttaswamy judgment, emphasizing the safeguarding of individuals' autonomy and control over their personal information.
52. It is hereby submitted that the 2021 Anti-Doping rules too clearly lay down, that samples, related analytical data, and Doping Control information may be used for anti-doping research purposes, *although* no Sample and data may be used for research without the Athlete's written consent.⁸⁵
53. It is therefore contended that the submission of the athlete's data to a private company without the presence of any kind of privacy guidelines or non-disclosure mechanism coupled with the non-adherence to the set of rules enacted purely for the purpose of regulating the workings of the NADA, with the added failure to collect the mandatory consent of the athletes to forward their data for any other use than for testing clearly violates the Right to privacy of the athletes guaranteed by this constitution.

2.5. THE TARGETING OF THE BOLAM COMMUNITY BY THE AI, VIOLATED THE PRINCIPLES OF EQUALITY AS ENSHRINED IN THE CONSTITUTION.

54. It most humbly prayed that It is an undisputed fact that the Data analysis indicated a higher frequency of drug tests being administered to Bolam athletes compared to athletes, and one of the major reasons for the same being their naturally dominant physical features.⁸⁶ It is the Petitioner's contention that this fact alone violated the principles of non-discrimination as enshrined in the constitution of India.
55. *Article 14* of the Constitution guarantees *equality before the law and equal protection of the laws*.⁸⁷ It is the contention of the Petitioner that via the unfair, unjust and unequal treatment of the Bolam athletes, the NWB while acting in its capacity as the rule-making authority, has

⁸⁵ NADA Anti-Doping Rules, 2015, Article 6.3.

⁸⁶ Moot Proposition, page 3.

⁸⁷ INDIA CONST. Art. 14.

violated the principles of equality and natural justice as enshrined in the Constitution of India, whose violation in itself is grounds for vitiating the proceedings⁸⁸

56. The selective categorisation of the Bolam community being done in an unfair and arbitrary manner clearly violates the principles laid down by this court in ***E.P. Royappa***,⁸⁹ i.e., “Equality is antithetical to arbitrariness. Where an act is arbitrary, it is implicit in it that it is unequal both according to political logic and constitutional law and is therefore violative of Art. 14”

57. It is the settled position of law, as decided by this court in ***Anwar Ali Sarkar***,⁹⁰ that in order for any classification to pass the constitutional muster, it needs to-

- Be founded on an intelligible differentia,
- The differentia must have a rational relation to the object sought to be achieved

58. The impugned AI system was designed to analyse complex patterns and identify potential signs of drug abuse based on *facial features and bodily functions*.⁹¹ It is common knowledge that the people from Bolam community are naturally taller and physically stronger.

59. *Article 16(2)* lays down the prohibition of discrimination based on *descent, place of* in respect of, any employment or office under the State.⁹² It is the contention of the Petitioners that the measure taken by the AI system was to categorically target the members of the minority community and suppress their growth on a national scale.

60. The athletes in question would be the receiver of perpetual scrutiny for their built and looks. This would in turn create a perpetual divide in the society and a fear among those who don't qualify as ‘superiorly built’. Collective fear stimulates herd instinct, and tends to produce ferocity toward those who are not regarded as members of the herd.⁹³

61. The classification of the wrestlers fails to pass the test as laid down by this court. The differentiation is not based on any scientific or medically recognised measures. It is the result of the whims and fancies of a majoritarian community who wish to achieve dominance in the sport and are willing to take any measures to achieve the same, no matter how foul. The

⁸⁸ Kapoor v. Jagmohan, AIR 1981 SC 136.

⁸⁹ E.P. Royappa V State of Tamil Nadu, AIR 1974 SC 555.

⁹⁰ State of West Bengal v. Anwar Ali Sarkar, AIR 1952 SC 75.

⁹¹ Moot Proposition, page 3.

⁹² INDIA CONST. Art. 16 cl. 2.

⁹³ BERTRAND RUSSELL, UNPOPULAR ESSAYS (Routledge Classics 1950).

classification is based on the abstract backing of Cessare Lombrosso, who classified criminals based on their facial characteristics,⁹⁴ a theory which has effectively been termed as absurd and preposterous almost 150 years ago and should not be given any importance when it comes to the interpretation of modern criminology as it lacks basic merit and relevance.⁹⁵ The classification in question is void of any merit in either law or morality, it violates two of the most important principles of non-discrimination as enshrined in the constitution of the country and warrants to be struck down based on sheer vagueness and incompetence that it portrays when it lays down the method used to segregate nationally acclaimed wrestlers. We contend the classification is so vague as it would fetter vagueness itself.⁹⁶

2.6. THE SUSPENSION OF THE ATHLETES FOR LIFE VIOLATES ARTICLE 19(1)(G) OF THE CONSTITUTION.

62. It is humbly submitted that occupation can be defined as a trade or calling in which a person ordinarily seeks to get his livelihood.⁹⁷ It is the contention of the Petitioners that in the present scenario, the freedom, as guaranteed by *Article 19(1)(g)*⁹⁸ of the constitution Bolam Athletes, has been violated by this order.

63. The Petitioners agree that the fundamental right is not absolute and subject to reasonable restrictions⁹⁹ which may be imposed by the state.¹⁰⁰ However, it is pleaded before this Hon'ble court that 'Reasonable' signifies that the limitation on the right ought not to be so stringent or malafide that it cannot be carried on,¹⁰¹ and if so, this court has to deem it unreasonable.

64. The Supreme Court held in ***Md. Yasin***,¹⁰² that the right under *Article 19(1)(g)* is affected when "in effect and in substance", the impugned measures brought about a total stoppage of occupation or business, both in a commercial sense and from a practical point of view and it is exactly what has happened in the present scenario. The athletes have been suspended for life for a charge which, if proven, warranted a punishment of up to 4 years as a maximum. A

⁹⁴ CESARE LOMBROSO, *L' HOMME CRIMINEL* (Duke University Press ,1876).

⁹⁵ Edwin D. Driver, *Pioneers in Criminology*, 47 J. Crim. L. Criminology & Police Sci. 515 (1912).

⁹⁶ Vivekananda Kemali And State of Karnataka & Anr., 2023 LiveLaw (Kar) 360.

⁹⁷ MLA. Webster's New World Dictionary of the American Language, New York (World Pub. Co., 1960).

⁹⁸ INDIA CONST. Art. 19 cl. g.

⁹⁹ INDIA CONST. Art. 19 cl. 6.

¹⁰⁰ Ramchand v. Union of India, AIR 1963 SC 563.

¹⁰¹ R.C.Cooper v. Union of India, AIR 1970 SC 564.

¹⁰² Mohammad Yasin v. Town Area Committee, AIR 1952 SC 115.

regulation becomes challengeable under *Article 19(1)(g)* if it is shown that it directly interferes with the exercise of freedom.¹⁰³

65. Hence it is the contention of the Petitioners that in the present scenario, the unwarranted, capricious, foul violation of fundamental rights is observed as the result of the unilateral decision of a biased decision-making authority who have made a decision bad in law, with subverting the due process as mandated by law, by showing profound discrimination against the athletes of a particular ethnicity and for the sole reason to forward their majoritarian agenda.
66. This decision cannot be held valid, and has to be overturned for the sheer disregard it shows to the principles enshrined in the constitution of the country.

2.7. THE SCRUTINY ON THE CONSUMPTION OF THE BATAVARI MEDICINE VIOLATES ARTICLE 29 OF THE CONSTITUTION.

67. It is humbly submitted that the increased scrutiny on the 'batavari ras' medicine, which is an age-old custom of the Bolam Community,¹⁰⁴ violates the fundamental rights of the wrestlers as enshrined in *Article 29*¹⁰⁵ of the Constitution. It is also submitted that India is a signatory to the United Nations Declaration on the Rights of Indigenous Peoples. *Article 24* of the same provides that Indigenous peoples have the right to their traditional medicines and to maintain their health practices.¹⁰⁶
68. It is submitted that *Article 29(1)* of the constitution mandates that any section of the citizens residing in the territory of India or any part thereof having a distinct language, script or culture shall have the right to conserve the same.¹⁰⁷ It is the submission of the Petitioners that *Article 29(1)* is a right without any restriction; it is the absolute right of the citizenry to conserve their own distinct culture.
69. The World Health Organization defines the quality of life as "an individual's perception of their position in life in the context of the culture and value systems in which they live"¹⁰⁸ and the same has been read into *Article 21* of the constitution.¹⁰⁹ The Petitioners contends that it would

¹⁰³ Sukhanandan Saran Dinesh Kumar v. UOI, AIR 1982 SC 902.

¹⁰⁴ Moot Proposition, page 3.

¹⁰⁵ INDIA CONST. Art. 29.

¹⁰⁶ United Nations (General Assembly), (2007); Declaration on the Rights of Indigenous People. Art 24.

¹⁰⁷ INDIA CONST. Art. 29.

¹⁰⁸ The World Health Organization Quality of Life (WHOQOL), <https://www.who.int/publications-detail-redirect/WHO-HIS-HSI-Rev.2012.03> (last visited Jan 6, 2024).

¹⁰⁹ Common Cause (A Registered Society) v. Union of India and Another (2018) 5 SCC 1.

be bad in law to read *Article 29(1)* as a stand-alone clause. Instead, a new and more correct interpretation must be adopted and it must be read in tandem with the right to life guaranteed under *Article 21*.

70. It is pertinent to note that it is a well-established principle that the right to live with human dignity and the same does not connote continued drudgery. The right to life enshrined in *Article 21* cannot be restricted to mere animal existence. It means something much more than just physical survival.¹¹⁰ It takes within its fold some of the fine graces of civilisation which makes life worth living, and the expanded concept of life would mean the tradition, culture and heritage of the person concerned.¹¹¹
71. Reiterating the fact that the medicine in question is an age-old traditional supplement consumed by the people of the community. Furthermore, It is one without side effects and one which was not banned until the majoritarian regime got hold of the office in question, with the intention to undermine the representation of a community who have proven to be superior in the sport.
72. The consumption of Herbs is a measure taken up by almost each and every person in the community, whoever is taking part in any physical activities, as it is a proven remedy to overcome fatigue and muscle loss. It has the same properties and effects as consuming ghee on a regular basis.¹¹²
73. Conclusively, it is contended that the increased scrutiny on the Batavari ras medicine is violative of the fundamental rights of the Bolam People as guaranteed by the Constitution.

¹¹⁰ Francis Coralie Mullin. Vs. The Administrator, 1981 AIR 746.

¹¹¹ Consumer Education & Research Centre v. Union of India, (1995) 3 SCC 42.

¹¹² Desi ghee for stronger bones; Indians go back to old habits, ONMANORAMA, <https://www.onmanorama.com/lifestyle/health/2019/09/16/desi-ghee-stronger-bones.html> (last visited Jan 5, 2024).

PRAYER

Wherefore, in the light of the Facts stated, Issues raised, Arguments advanced and Authorities cited, may this Hon'ble Supreme Court of Nahira be pleased to *Adjudge/Declare* THAT:

- I. The present Special Leave Petition is maintainable and Catcher Pvt. Ltd. is the 'right authority' to enforce fundamental rights against,
- II. The Public Interest Litigation filed before this Hon'ble Court is Maintainable,
- III. The National Wrestling Board has transgressed its powers and has violated the provisions of the Constitution and the NADA Anti-Doping Rules,
- IV. The lifetime suspension of the three athletes is void,
- V. The targeting of the Bolam community by NWB's AI is discriminatory, violating principles of equality,
- VI. The consumption of the traditional medicine 'Batavari Ras' by Bolam athletes is not violative of the prohibited list,
- VII. The three unfairly suspended athletes be restored and adequate compensation for nine years of unlawful suspension be provided,

AND/OR

PASS ANY OTHER ORDER IT MAY DEEM FIT, IN THE INTEREST OF JUSTICE, EQUITY AND GOOD CONSCIENCE.

All of which is most humbly and respectfully submitted.

Place: S/d _____ S/d _____

Date: **COUNSELS FOR THE PETITIONER**